

McIlvaine v. Coxe.

state had a right to make such a law. He had argued only upon the general ground, independent of the law of New Jersey.

Rawle.—It is admitted, then, that he could not make his election, until the peace of 1783. It was the first time he *ever heard, that after an arduous conflict has successfully terminated, by means of the [*301 energy and exertions of a majority of the people, each individual of the minority had a right of election, which should look back and give a new aspect to his conduct through the period of the struggle.

W. Tilghman stated, that he did not contend for such an election, but that all the citizens of the United States, after the peace of 1783, had a right of expatriation, and Daniel Coxe among the rest.

Rawle.—Let us, then, consider this supposed expatriation, this imaginary dereliction of his country and his rights, this abjuration not only of allegiance, but capacity to inherit, which is to operate against him as a political estoppel; or, like the ancient confession of villenage, is to deprive him at once of all power to take by descent or purchase. It is, perhaps, a sufficient answer, to say, that expatriation is a fact which ought to be found.

Our opponents have piled together a confused and shapeless mass of evidence, on which this court cannot act. Since, even if expatriation had been allowed by the constitution or laws of New Jersey, all the different facts put together would not amount to the technical fact of expatriation; and since, if expatriation be not allowed, they are of no more importance than finding whether Mr. Coxe wore a blue coat or a brown one.

The circumstances most relied on to prove Daniel Coxe's expatriation, is his carrying on commerce as a British subject. In this respect, there has been a liberal construction of the rights of citizens of the United States, in the British courts, even as to their navigation act. They have, for the purposes of commerce, held that a person might be a British subject, as to his duty of allegiance, and a citizen of the United States, as to his commercial character. Thus, in the case of *Marryat v. Wilson*, 1 Bos. & Pul. 430, 444, it was held, that "both characters may stand together," and so, in all cases, so far as there are no conflicting duties, a man may be a subject of many different governments, and may enjoy the benefits conferred upon him by all. The right of Daniel Coxe to hold land *in New Jersey does not conflict with any duty which he owes as a British subject. [*302 His becoming a subject of Great Britain, therefore, as to purposes of commerce, is not evidence that he had renounced his rights as a citizen or subject of New Jersey. Nor does it follow, because he is a British subject, that he is not also an American citizen. 1 Bl. Com. 369, 376; *Talbot v. Jansen*, 3 Dall. 169.

What, then, is expatriation? It is said to be an operation, by which a citizen is made an alien. And it is contended, that although Daniel Coxe was once a citizen of New Jersey, it was against his will, and that the moment he had it in his power, by the peace, to throw off that character, he did it, and by becoming a subject of the King of Great Britain, he became an alien to New Jersey, and therefore, not capable of taking lands by descent, in that state.

Many of the writers upon this subject have confounded expatriation with emigration; and hence has resulted great confusion. But the ideas are